

25NNCV03058 25NNCV03058

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-17

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Case Number: 25NNCV03058 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO BE RELIEVED AS COUNSEL

Hearing Date: 07/17/26

CASE NO./NAME: 25NNCV03058

Brewer v. Turo, Inc.

Moving Party: Plaintiff's

Counsel

Responding Party: N/A

Notice: Sufficient

Ruling:

GRANT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative

ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal wrongful death and survival action matter, arising from a vehicle collision. Attorney Mark J. Nagle ("Counsel") represents Plaintiff Lacey Brewer. Counsel moves to be relieved as counsel, citing an irremediable breakdown in the attorney-client relationship. No opposition has been filed.

LEGAL

STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all parties that have appeared in the case." (Cal. Rules of Court, Rule 3.1362, subd. (d).)

DISCUSSION

Counsel has submitted completed MC-051, MC-052, and MC-053 forms in compliance with the rule 3.1362 requirements.

Counsel

submitted a declaration stating there has been an irreconcilable breakdown in attorney-client relationship and communications. (MC-052.) Counsel asserts the client has been served with copies of the motion papers, and a proof of service has been filed, reflecting service via mail was made on Plaintiff. (MC-052; POS 6/26/26.)

Defendant has not yet appeared in this case.

Thus, Counsel has complied with the service requirements of rule 3.1362.

Accordingly,

Counsel's motion to be relieved as counsel is GRANTED.

CONCLUSION

AND ORDER

Counsel's motion

to be relieved as counsel is GRANTED.

MOVING PARTY

shall

provide notice of this order.